

Plaintiff to properly notify Defendant of Motion and hearing date.

2. 9:00 AM CASE NUMBER: L24-10338

CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. BRIAN LAM

***HEARING ON MOTION IN RE: NOTICE OF MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN
ON 4/29/26**

FILED BY: CROWN ASSET MANAGEMENT, LLC

***TENTATIVE RULING**

Plaintiff filed a Motion to set aside a judgment, out of the interests of justice.

The Motion was served on a mailing address for Defendant that was also listed on the Answer.

On 1/14/26, this court rendered a judgment in favor of Plaintiff in the amount of \$31,312.09, with costs of \$443.55.

In their Motion, Plaintiff cites the fact that Defendant had begun the process of bankruptcy, unbeknownst to Plaintiff.

Disposition

Plaintiff's Motion is granted.

This matter will be stayed.

A CMC will be scheduled for 1/27/27, 830 am, to check on the status of the bankruptcy proceeding.

Plaintiff to file Order, and serve copy of filed Order on Defendant.

3. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY: CRUZ, JUAN

***TENTATIVE RULING**

Defendant has filed a Motion to set aside the judgment. But there is no proof that Defendant provided any notice to the Plaintiff.

Disposition

This Motion will be continued to 9/8/26, 9am.

Defendant to provide notice of Motion and hearing date to Plaintiff.

4. 9:00 AM CASE NUMBER: L25-01107
CASE NAME: BANK OF AMERICA N.A. VS. CELIA MELCHOR
*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for counsel of Defendant.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,336, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$13,209.61.

Plaintiff to file order on Motion, as well as submit Judgment, and to serve filed copies on Defendant.

5. 9:00 AM CASE NUMBER: L25-01414
CASE NAME: BANK OF AMERICA N.A. VS. JIMMY COBB
*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY ALEXANDER PENLEY
FOR DEF ON 5/1/26